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Remand and Custody

Remand in common parlance, means to send back. In Criminal Law, remand denotes sending back an arrested person to custody pending investigation or trial. It means authorized detention of the accused by Magistrate.

Custody means the state of being guarded. Custody involves detention of the person arrested under safety. When arrested person is produced before the Magistrate, he is remanded to custody by a Judicial Order.

The Court has no inherent power to remand an accused to any custody unless the power is conferred by the law. Section 167 of the code deals with the provisions relating to remand while the case is under investigation viz before filing final report u/s.173 Cr.P.C whereas Section 309 deals with the provisions relating to remand after the court takes cognizance of the case viz after filing final report u/s.173 Cr.P.C.

Remand by the Judicial Magistrate under Sec.167 CrPC.

- Provisions of section 167 of the code of Criminal Procedure are intended to operate at a stage where a person is arrested and an investigation is started or is yet to start and is not likely to be completed within 24 hours.
- An officer in-charge of a PS or any other officer not below the rank of SI making an investigation can produce the arrested accused before a nearest Magistrate within 24 hours of arrest for remand – (Sec.167(1) Cr.P.C).
- Officer requesting for the remand of the accused has obligation to produce material to satisfy the magistrate that there are reasonable grounds to suggest that the accused has committed the offence and that remand is necessary to avoid tampering with evidence / witnesses. The Remand Report shall be accompanied by a copy of the CD (Part-I) for the perusal of Court – (Sec.167(1) Cr.P.C).
- However the detention for longer period than 24 hours in contravention of Sec. 57CrPC. does not affect the power of Magistrate to act u/s 167 CrPC for passing order of remand or prosecution of accused.
- A Magistrate, whether jurisdictional or not, undoubtedly can remand for a period of 15 days in the whole on first production and such remand can be to either Police or judicial custody – (Section 167 (1) Cr.P.C).
- If the said Magistrate has no jurisdiction to try or commit the accused to custody, and considers further detention unnecessary, he may order the accused to be forwarded to the Magistrate having jurisdiction u/s 167(2) CrPC.
- However, remand beyond the period of first 15 days can only be ordered by the jurisdictional magistrate having authority to try / commit the offence.
- The Magistrate before whom an arrested accused is produced may authorize his detention for a term not exceeding 15 days at a stretch.
- The Magistrate may remand the accused person for a total period not exceeding 90 days where offence is punishable with death or imprisonment for life or imprisonment for a term of not less than 10 years – (Sec.167(2)(a)(i) Cr.P.C).
- The Magistrate may remand the accused person for a total period not exceeding 60

days where the investigation relates to any other case – (Sec.167 (2) (a) (ii) Cr.P.C).

- In computing the period of 60 or 90 days, the date of arrest shall be excluded. After the expiry of this extended period of 60 or 90 days the accused person shall be released on bail if he is prepared to furnish bail.
- It was held that the Right of accused to be released on bail for non-filing of police report within 90/60 days as the case may be is absolute.
- No Magistrate shall authorize detention in police custody unless the accused is produced before him in person for the first time - (Section 167 (2) (b) Cr.P.C).
- Magistrate may extend further detention in Judicial Custody (remand extension) on production of the accused either in person or though the medium of electronic video linkage – (Sec.167 (2) (c) Cr.P.C)..
- Section 167 only permits a remand when investigation relating to any offence is pending. It is not applicable when a person is arrested and detained in connection with a proceeding for prevention of breach of peace u/s 107 CrPC or any other preventive detention law.

Judicial Custody under Section 309 CrPC.

- Sec.309 comes into operation after taking cognizance of the police report by the court and not during the investigation and hence, the remand under this provision can only be to judicial custody.
- Normally in every inquiry or trial, the proceedings shall be held as expeditiously as possible and also examination of witnesses once began shall be continued on day to day basis until all witnesses in attendance have been examined. But in certain occasions, if it is not practicable to do so or continue proceedings, Court may adjourn the proceedings after recording reasons for such adjournments.
- During such adjournment, if any accused is in custody, Magistrate shall remand the accused for a period of 15 days at a time.

Remand to Police Custody by the Magistrate.

- The Magistrate can order for Police Custody for a period not exceeding 15 days on the whole. The Magistrate is prohibited from detaining a person in Police Custody beyond the period of 15 days.
- Police Custody may be sought from the Court only in the initial period of 15 days detention authorized by court and after the expiry of first 15 days of detention, Police Custody shall not be granted by the Court.
- The maximum period of 15 days police custody is restricted to a single case. Suppose the accused is concerned in a series of cases, separate 15 days of police custody is applicable to each case.
- An affidavit to be filed by the IO requesting for police custody stating the reason thereof. The affidavit shall state that the accused will not be ill-treated in police custody, if ordered, and looked after well, while in police custody. The IO shall be examined on oath.
- Before remanding the accused to police custody, the Magistrate should satisfy himself that there are sufficient and reasonable grounds to do so and he should record reasons for doing so. (Sec.167 (3) CrPC and Rule 25 of TN Criminal Rules of Practice)
- Some of the reasonable grounds for remanding the accused to Police Custody are.
  - For the purpose of recovering the property / material object on pointing out by the accused.
  - For showing the place so that the statement of the accused could be verified.
  - To show the place where he has concealed or disposed the proceeds of the crime.

- Any Magistrate other than the CJM making such order shall forward a copy of his order, with his reasons for making it, to the CJM. (Sec.167(4) CrPC.)

Dos and Don'ts, when Police Custody is granted

- The accused can be kept in police lock-up, can be taken to any place and may be kept at any place for the purposes of investigation within this period.
- There should always be an entry in the GD when accused is taken out of police lock-up or readmitted; his person is always to be searched before readmission to lock-up.
- The friends or relatives or counsel of the accused can have access to him with permission of the officer in charge.
- If anybody communicated with him without the said permission, while in custody on remand, then it is an offence under the Prisons Act, 1894 and Police Officer can file a complaint against that person.
- The diet to accused in police lock-up is to be supplied by officer-in-charge and bill reimbursed from Contingent fund.
- Accused in police custody has to be subjected to medical examination at regular intervals as ordered by the magistrate. If the accused falls ill in lock-up, he must be given medical aid immediately.
- Detention of accused for longer period than the period of custody ordered by Magistrate and without further orders of Magistrate is illegal and Police Officer is liable u/s 342 IPC and 29 Police Act.

Treatment of Prisoners in Police Custody – (PSO 637).

- Prisoners in police custody shall not be permitted to leave the lockup after night fall, except in special and emergent circumstances, which shall be recorded in the General Diary.
- A Prisoner in police custody prior to remand is entitled to see a Pleader and his relations.
- Whenever any punitive action is taken or contemplated against any foreign national, he should be provided with facilities if he so desires to communicate over the telephone or by telegram or letter, with his Counsel or High Commissioner or Consular – General or his representative, as the case may be.
- He should not at any time be allowed to talk to members of the public. No person in police custody shall be allowed to be garlanded or make speeches. He shall not also be allowed to receive food direct from other people.
- If a prisoner at the time of arrest is already garlanded, a complete search shall be made immediately after arrest and the garlands as well as the other articles except necessary wearing apparel shall be removed and taken possession after preparing a Seizure Mahazar.
- Dhurries (Bed sheets) and blankets are supplied for the use of Prisoners in police lockups according to the scale noted below.
- All police lockups – two durries each
    - Police Lockups in Stations – Two blankets each where the police staff are supplied with blankets.
    - These articles will be treated as Station property and the officer in charge of PS or Out-Post will be responsible for their issue to such of the prisoners who do not provide themselves with their own bedding.
- The police lock-up if it contains a prisoner or prisoners shall be unlocked at daybreak. The bedding of the prisoners shall be at once brought outside, well shaken and, if it is clean left for some hours in the sun.
- The night vessels shall be removed and the lock-up thoroughly cleaned.

- As far as possible a flush out seat should be provided in each lockup cell in police stations.
- The prisoners shall be taken to the latrine and shall be allowed to wash.
- They shall be fed daily at 10 A.M or earlier if necessary, in time to be taken to Court after meals, and again at 5 P.M. If prisoners are not brought to the Station till after the hours prescribed for meals they should be fed as soon as possible after they are confined.
- Officers in charge of police stations and officers in charge of Guards will be held personally responsible for seeing that these orders are carried out.